

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2023-1085

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE AS A LICENSED PROFESSIONAL COUNSELOR IN THE STATE OF COLORADO OF CRAIG S. MCFADDEN, LICENSE NO. LPC.0001303,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Craig S. McFadden ("Respondent"), as follows:

1. The Boards have jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a licensed professional counselor in the State of Colorado on November 27, 1995, and was issued license number LPC.0001303, which is currently active.
3. This Order is a full and final resolution of case number 2023-1085. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Based on its review of case number 2023-1085, the Board alleges that Respondent violated section 12-245-224(1)(r), C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(r) Has engaged in sexual contact, sexual intrusion, or sexual penetration, as defined in section 18-3-401, with a client during the period of time in which a therapeutic relationship exists or for up to two years after the period in which a therapeutic relationship exists.

5. Respondent denies the Board's allegations.
6. Although Respondent denies the Board's allegations, Respondent understands that if the allegations were ultimately proven by the Board at hearing, Respondent would be found to have violated section 12-245-224(1)(r), C.R.S.

PERMANENT RELINQUISHMENT

7. Respondent hereby permanently relinquishes his license and the right to practice as a licensed professional counselor in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept such relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board, including the provisions of section 12-20-404(3), C.R.S. Respondent agrees not to reapply for registration as a licensed professional counselor in the State of Colorado at any time in the future.

TERMS AND CONDITIONS

8. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

9. This Order is entered into by Respondent voluntarily, without coercion, and without admission of any wrongdoing. Respondent has had an opportunity to consult with counsel and fully understands the legal consequences of this Order and the right to a formal hearing on all matters herein.

10. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

11. This Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403, 12-245-214, 12-245-226, and 24-4-104(9), C.R.S.

12. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

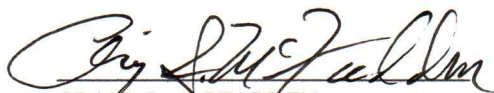
13. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

14. This Order shall be admissible as evidence at any hearing held before the Board.

15. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

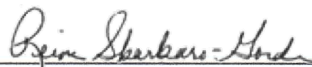
RESPONDENT



CRAIG S. MCFADDEN
License No. LPC.0001303

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR
EXAMINERS



REINA SBARBARO-GORDON
Program Director

Effective this 11th day of July, 2023

APPROVED AS TO FORM:



DARA KELLER
Attorney for Respondent